

		the formation of contracts.” (<i>First Options of Chicago, Inc. v. Kaplan</i> (1995) 514 U.S. 938, 944.) On a motion to compel arbitration, the court’s role is limited to deciding: “(1) whether there is an agreement to arbitrate between the parties; and (2) whether the agreement covers the dispute.” (<i>Brennan v. Opus Bank</i> (9th Cir. 2015) 796 F.3d 1125, 1130.) If these conditions are satisfied, the court is without discretion to deny the motion and must compel arbitration. (9 U.S.C. § 4; <i>Dean Witter Reynolds, Inc. v. Byrd</i> (1985) 470 U.S. 213, 218 [“By its terms, the [FAA] leaves no place for the exercise of discretion by a district court, but instead mandates that district courts shall direct the parties to proceed to arbitration.”].) “[T]he party resisting arbitration bears the burden of proving that the claims at issue are unsuitable for arbitration.” (<i>Green Tree Fin. Corp. v. Randolph</i> (2000) 531 U.S. 79, 91.) <u>The Agreement Covers the Claim Asserted by Plaintiffs</u> Defendants have met their burden of demonstrating the existence of a valid arbitration agreement with Plaintiff decedent. (Complaint, Ex. A.) In covering “any dispute or claim in law or equity arising between them regarding the obligation to pay compensation under this Agreement,” the Agreement covers Plaintiffs’ claims against Defendants. Accordingly, the Motion to Compel Arbitration is GRANTED, and the action is STAYED pending the completion of arbitration. (Code Civ. Proc. § 1281.4.) An ADR Review Hearing is set for 9:00 a.m. on October 20, 2026, in Department N16. Defendants shall give notice of this ruling.
6	Activate Clean Energy, LLC vs. DMX Engineering, LLC	TENTATIVE RULING: <u>Motion for Pro Hac Vice Admission</u> Attorney Dwyer Arce moves for pro hac vice admission. For the following reasons, the motion is GRANTED. Foreign attorney Arce’s application is verified. It properly sets forth the applicant’s residence and office addresses and California counsel’s contact information. It states the applicant’s courts and

		dates of admission and attests to her good standing. The application states Attorney Arce has submitted three applications in the last two years. The motion has been served on the State Bar of California at its San Francisco address and Attorney Abed attests that the application fee has been paid. (Cal. Rules Ct., Rule 9.40(c)-(e).) The moving attorney to give notice.
7	Code 4 Media Group, Inc. vs. Kim	OFF CALENDAR
8	Ha vs. Nguyen	TENTATIVE RULING: For the reasons set forth below, Defendant Anh Quang Nguyen’s motion to set aside default is GRANTED. Defendant’s motions to quash service of summons are restored and set for hearing on September 30, 2026, at 9:00 a.m. in this Department. <u>Violation of Cal. R. Ct., rule 3.1113, subd. (d)</u> As a preliminary matter, Defendant’s motion violates Cal. R. Ct., rule 3.1113, subd. (d), which provides that “[e]xcept in a summary judgment or summary adjudication motion, no opening or responding memorandum may exceed 15 pages.” Defendant’s motion is 20 pages. However, the court will exercise its discretion to proceed on the merits. <u>Procedural History</u> The instant motion was previously set for 11/12/25. This court tentatively granted the motion on the grounds that Plaintiffs failed to oppose. However, Plaintiffs filed an Opposition and Declaration on 11/12/25 stating that they were never served with the instant motion despite the proof of electronic service. Plaintiffs argue in their Opposition that Defendant’s failure to serve the motion denied Plaintiffs a meaningful opportunity to respond, and requested that the court continue the motion and allow Plaintiffs to file a full written opposition. The court continued the motion. Default was entered against Defendant on 9/6/24. Defendant moves to set aside entry of default pursuant to Code Civ. Proc. § 473, subds. (b) and (d).